



INDIAN LAW & DEALMAKING · 31 JULY 2026

Five moves shaping the board now.

- › NCLT Ahmedabad tightens financial debt test
- › SEBI cracks down on social-media pump-and-dump
- › GARUDA green-channel slashes AIF rollout time
- › Apollo buys 41% Premier Explosives for ₹15.5bn
- › ED attaches ₹634cr in Unitech Noida project

SWIPE →



IBC · NCLT

01 / 05

Loan to repay bank debt not financial debt

On July 30, 2026, NCLT Ahmedabad dismissed a CIRP petition by a money-lender, holding that a loan advanced solely to repay existing bank debt does not qualify as financial debt under the IBC. The bench applied an economic substance test to the transaction structure.

THE READ

Admission-stage gatekeeping is tightening for rescue-loan CIRP petitions. NBFCs and distressed-credit investors must restructure rescue loans as genuine new-value infusion or risk dismissal at the threshold.



SEBI · ENFORCEMENT

02 / 05

SEBI penalises social-media manipulation in Moksh Ornaments

On July 30, 2026, SEBI passed an adjudication order penalising unnamed entities and individuals for coordinated social-media-driven market manipulation in Moksh Ornaments Limited using Telegram, X, and WhatsApp influencer networks. The order imposed monetary penalties and trading bans.

THE READ

SEBI is now moving fast against retail-facing manipulation networks in SME stocks. Expect heightened surveillance and faster enforcement cycles that will force compliance teams to audit social-media exposure and influencer relationships.



SEBI · AIF

03 / 05

GARUDA green-channel cuts AIF fundraising lead time

On July 30, 2026, SEBI issued a circular operationalising the GARUDA mechanism, allowing AIF managers to commence fundraising upon document acknowledgement rather than waiting for explicit approval, subject to compliance conditions. The circular applies to all SEBI-registered AIFs.

THE READ

Fundraising timelines will compress materially as approval risk shifts to managers and merchant bankers. Term sheets, side letters, and closing mechanics will be rewritten to allocate documentation risk and accelerate capital calls.



Apollo acquires 41% Premier Explosives for ₹15.5 billion

On July 29, 2026, Apollo Micro Systems announced acquisition of a 41.33% stake in defence-equipment maker Premier Explosives for ₹15.5 billion, consolidating a domestic defence supply chain. The deal was disclosed through BSE and NSE filings.

THE READ

This is one of the largest India defence M&A moves in 2026 and signals continued consolidation in the defence value chain. Expect follow-on control and management changes as buyers integrate critical subsystem makers.



PMLA · ED

05 / 05

ED attaches ₹634 crore in Unitech Noida project

ED issued a Provisional Attachment Order under PMLA against properties linked to the Unitech Golf and Country Club project in Sectors 96 to 98, Noida, attaching leasehold rights over about 347.83 acres and SPV equity holdings via Sungrace Products and CIG Infrastructure. The PAO was issued on May 27, 2026 and remains legally operative through July 2026 with cumulative attachments in the Unitech matter at ₹2,281.07 crore.

THE READ

Title due diligence and lender security enforcement in stalled real-estate projects now face acute PMLA risk. Restructuring, asset sales, and buyer remedies will turn on navigating attachment orders and Adjudicating Authority confirmation pathways.



THE THROUGH-LINE

Across these five developments, regulators and courts are tightening the gatekeeping function at the front end of financial and corporate processes. NCLT is demanding genuine economic substance for financial debt, SEBI is shortening AIF rollout times while accelerating enforcement against manipulation, and ED is using PMLA to lock down large real-estate assets early in the enforcement chain. The common thread is less tolerance for structuring arbitrage and faster movement from filing to consequence.





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